

The complaint

Ms B is unhappy a storm damage claim made to Fairmead Insurance Limited (Fairmead) under her home insurance policy has been declined.

What happened

In October 2020 water entered Ms B's property through the roof and she made a claim for storm damage to Fairmead, the provider of her home insurance policy.

Fairmead declined the claim for storm damage as they said there weren't storm conditions at the time so no insured event, under Ms B's policy, had occurred. And they said more generally the policy doesn't cover wear and tear or anything that happens over time.

Ms B was unhappy with this and approached this service.

Our investigator looked into things, but she didn't uphold the complaint. She said there weren't storm conditions at the time the damage was reported. So she was satisfied that Fairmead has acted fairly by declining the claim on this basis. She also said that Fairmead had briefly mentioned wear and tear or gradual damage wasn't covered more generally, she was provided with images of the roof and she thought it possible in the absence of storm conditions that the bad weather could've highlighted existing issues with it.

Our investigator also said that the accidental damage cover under the policy excluded water entering the property, so in the absence of storm damage, the internal damage wouldn't be covered under this section either.

Ms B didn't agree and asked for a final decision from an ombudsman.

What I provisionally decided – and why

In my provisional decision, I said:

"I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Having done so, I'm minded to reach a different outcome to our investigator. But to manage Ms B's expectations, there isn't enough at this stage to say Fairmead should be covering her claim for storm damage. Rather I think Fairmead need to do more in order to decide whether Ms B has a valid claim or not. And I think they should've done this sooner. I'll explain why.

When we look at complaints about storm damage claims, we consider three main questions. If any of the answers to the three questions are *no* then it's likely a claim won't succeed.

Were there storm conditions

Ms B's policy covers storm damage. And the policy defines a storm as:

"Wind speeds with gusts of at least 47mph/75kmh or torrential rainfall at a rate of at least 25mm/one inch per hour or snow to a depth of at least one foot/30cm in 24 hours or hail of such intensity that it causes damage to hard surfaces or breaks glass."

Fairmead says the weather conditions at the time didn't reach storm force conditions as defined in the policy as the windspeed wasn't high enough, so they declined the claim outright at the start. Our investigator agreed with this based on the date of loss.

However, I've also considered the weather records at the time. I agree on the specific date reported – 3 October 2020, that the overall weather conditions at the nearest weather station didn't show storm conditions.

But shortly before this, on 25 September 2020, the weather records do indicate windspeeds of up to 49mph at the nearest weather station. Which is in line with Fairmead's definition of storm conditions. There was then a short period of heavy rain leading up to when the damage was reported on 3 October 2020, after water had caused damage internally.

Fairmead also noted in their claim notes that Ms B's property is in an exposed coastal location, which could also affect the weather conditions in that area specifically.

So I'm not minded to agree that it was fair to decline the claim outright on the basis of no storm conditions, as shortly before the water entered Ms B's home, the weather records do indicate storm force conditions, as defined, occurred.

Is the damage consistent with storm

Ms B has provided this service with images of her roof externally, and she's indicated on these where the water has entered her property. This shows an area of lifted tiles in that precise area. She's also provided images of where the water has entered and caused damage internally. Tiles being moved and lifted, and water then entering a property is consistent with storm damage – in the right conditions.

Was the storm the dominant cause of damage

Fairmead didn't inspect the roof or internal damage, as they outright declined the claim based solely on the weather conditions on the date of loss. As mentioned above, I think storm conditions did occur just before the loss was reported, so the claim should've at least been considered further at that stage to determine whether the storm was the cause of damage, rather than being declined outright. But the claim didn't get that far.

Fairmead mentioned gradual damage and wear and tear isn't covered under Ms B's policy more generally. They didn't use this exclusion to decline the claim, and they didn't view the property or images of the damage to reach that conclusion, they solely based the claim decision on weather conditions – incorrectly based on the weather records I've seen.

Ms B hasn't provided a report from an expert which demonstrates the storm was the dominant cause of damage. But Ms B has provided images which do show lifted tiles and water damage inside, which, as I say, could be consistent with storm type damage.

But here and based on all the information provided, I'm not able to conclude that the storm was the dominant cause, or whether there is any other issue with the roof, such as gradual damage or wear and tear which could've been the dominant cause. So I'm not at this stage able to conclude Fairmead should accept and deal with the claim.

But equally, I don't think Fairmead has fairly declined the claim, as they said there weren't storm conditions, which the weather records indicate is incorrect.

Therefore, unless anything changes as a result of the responses to my provisional decision, I'm minded to say that Fairmead needs to reconsider the storm damage claim in line with the remaining policy terms.

Ms B may also need to provide additional information in order for Fairmead to do so, or Fairmead may need to inspect the damage further to establish if it is covered under Ms B's policy. So in response to my provisional decision, I'm asking both parties to confirm if they are in agreement with Fairmead reconsidering the claim in line with the remaining terms.

If my final decision then remains the same as my provisional decision, and if after Fairmead has done this Ms B is unhappy with whatever decision is ultimately reached, we may be able to consider this as a new separate complaint based on that new position and information.

I don't think the service Ms B has received has been in line with her reasonable expectations and Fairmead should have done more in considering the claim earlier on. Having your home damaged will be upsetting in itself, but this has been added to by Fairmead outright declining the claim incorrectly. So in addition to reconsidering the claim, I'm also minded to say Fairmead should compensate Ms B £100 for the additional distress caused."

So I was minded to uphold the complaint and to direct Fairmead to reconsider Ms B's storm damage claim in line with the remaining policy terms and to pay £100 compensation.

The responses to my provisional decision

Fairmead responded and said they didn't have anything further to add.

Ms B accepted my provisional decision. She asked if she should obtain her own roof report to submit to Fairmead, or whether they would be carrying out their own inspections.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

And I've thought carefully about the findings I came to in my provisional decision. Having done so, and as neither party provided any comments which would lead me to depart from those, they remain the same and for the same reasons outlined.

As I said in these, Fairmead need to reconsider Ms B's claim in line with the remaining terms and conditions. And Ms B may need to provide more information to Fairmead to enable them to do so. But at this stage, I can't say whether Fairmead would need Ms B to provide her own report, or whether Fairmead would want to carry out their own inspection. Fairmead has indicated that they may wish to inspect themselves, but this is something that Ms B will need to discuss with Fairmead directly in the first instance.

But as I outlined in my provisional decision, once Fairmead has reconsidered the claim in line with the remaining terms, and if Ms B remains dissatisfied whatever position is ultimately reached, we may be able to consider that as a new complaint based on that new information.

Neither party has provided anything which would lead me to depart from the £100 compensation I was also minded to say Fairmead should pay Ms B, so this remains the same, and for the same reasons.

My final decision

It's my final decision that I uphold this complaint and direct Fairmead Insurance Limited to:

- Reconsider Ms B's claim in line with the remaining policy terms
- Pay Ms B £100 compensation

Under the rules of the Financial Ombudsman Service, I'm required to ask Ms B to accept or reject my decision before 12 August 2021.

Callum Milne
Ombudsman